

**Court No. - 21**

**Case :-** WRIT - C No. - 38921 of 2022

**Petitioner :-** Vijay Singh

**Respondent :-** State Of U P And 3 Others

**Counsel for Petitioner :-** Neeraj Srivastava

**Counsel for Respondent :-** C.S.C.,Baleshwar Chaturvedi

**Hon'ble Manoj Kumar Gupta,J.**

**Hon'ble Vikram D. Chauhan,J.**

Supplementary affidavit filed today is taken on record.

The petitioner is aggrieved by provisional assessment order dated 25.3.2021 by which the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd., Sikohabad had assessed a sum of Rs.1,77,589/- as electricity charges in a case of theft of electricity and had required explanation from the petitioner. The petitioner has also challenged the recovery citation dated 6.7.2022 for a sum of Rs.4,00,191/- plus other charges.

The specific case of the petitioner is that no final assessment was done and straightway, on basis of provisional assessment order, the respondents have initiated recovery proceedings which are, therefore, illegal. It is also specific case of the petitioner that the recovery citation is otherwise also illegal inasmuch as the provisional assessment was for Rs.1,77,589/-, whereas the recovery citation is for a sum of Rs.4,00,191/-.

Learned counsel appearing on behalf of respondents no.2 and 3 Sri Virendra Kumar Gautam holding brief of Sri Baleshwar Chaturvedi is in receipt of instructions. It is admitted to the respondents that the impugned recovery has been issued on basis of provisional assessment order dated 25.3.2021. The instructions supplied to the counsel by the aforesaid respondents also admits that the recovery certificate for a sum of Rs.4,00,191/- was issued by mistake and it has been withdrawn on 2.11.2022.

The petitioner has filed a supplementary affidavit stating therein that he was arrested by the Tehsil authorities on basis of same recovery certificate on 11.11.2022 and was detained in civil lockup. He was released only after they succeeded in realising Rs.52,500/- from him.

The facts noted above prima facie shows gross negligence and a casual approach on part of the respondents. Without there being any final assessment order, the recovery initiated against the

petitioner was contrary to the provisions of the Electricity Act and the U.P. Electricity Supply Code. Moreover, the recovery certificate having been withdrawn on 2.11.2022, it is inexplicable as to why it was not forthwith communicated to the Tehsil authorities, as on account of the fault in this behalf, the petitioner had to suffer civil imprisonment.

We direct the Managing Director, Dakshinanchal Vidyut Vitran Nigam Ltd. to hold an enquiry in the matter and submit his report on the next date alongwith his personal affidavit as well as the action that is taken by him in the matter against any person found responsible for dereliction of duties and how he intends to compensate the petitioner.

List as fresh on 17.1.2023.

In the meantime, no coercive action shall be taken against the petitioner.

Learned counsel for respondents no.2 and 3 shall communicate the instant order to the concerned respondent for due compliance.

(Vikram D. Chauhan, J.)      (Manoj Kumar Gupta, J.)

**Order Date :-** 6.1.2023  
SL

**Court No. - 21**

**Case :-** WRIT - C No. - 38921 of 2022

**Petitioner :-** Vijay Singh

**Respondent :-** State Of U P And 3 Others

**Counsel for Petitioner :-** Neeraj Srivastava

**Counsel for Respondent :-** C.S.C.,Baleshwar Chaturvedi

**Hon'ble Manoj Kumar Gupta,J.**

**Hon'ble Vikram D. Chauhan,J.**

In compliance of our order dated 6.01.2023, the Managing Director, D.V.V.N.L. has filed his affidavit. It is admitted therein that recovery certificate for an amount of Rs.4,00,191/- was issued on 6.07.2022 by mistake and it was withdrawn on 2.11.2022. It is also admitted therein that because of the fault of the officials of D.V.V.N.L., the petitioner had to undergo civil imprisonment. The affidavit further discloses that in the preliminary enquiry held in pursuance of the order of the Managing Director, D.V.V.N.L., it transpires that proper procedure for assessment, as laid down in the Electricity Supply Code, 2005, was not followed. As many as five officials have been found prima facie guilty of dereliction of duties. It is stated that recommendation has been made for initiating disciplinary enquiry against them.

The affidavit is silent on the aspect as to how the respondent Corporation proposes to compensate the petitioner for the mental harassment suffered by him on account of being detained in civil prison without any valid reason. The affidavit is also silent on the aspect as to how the respondent Corporation seeks to deal with cases where recovery certificates had been issued without proper procedure relating to assessment having been followed by the Department. We, therefore, require the Managing Director, D.V.V.N.L. to examine the said aspects and clarify the same by filing his affidavit by tomorrow.

Put up as fresh tomorrow.

(Vikram D. Chauhan, J.)      (Manoj Kumar Gupta, J.)

**Order Date :-** 17.1.2023

SL

**Court No. - 21**

**Case :-** WRIT - C No. - 38921 of 2022

**Petitioner :-** Vijay Singh

**Respondent :-** State Of U P And 3 Others

**Counsel for Petitioner :-** Neeraj Srivastava

**Counsel for Respondent :-** C.S.C.,Baleshwar Chaturvedi

**Hon'ble Manoj Kumar Gupta,J.**

**Hon'ble Vikram D. Chauhan,J.**

In compliance of our previous order dated 6.1.2023, respondent no. 2 has filed his personal affidavit. He is also present personally in Court. It is admitted in his affidavit that recovery notice was issued to the petitioner without following proper procedure. Therefore, the same has been withdrawn. He has also placed on record an office memo dated 17.1.2023 whereby concerned officers have been reminded of the provisions under the Electricity Supply Code, 2005 in respect of assessment of electricity charges to be realised from a person indulging in theft of electricity/unauthorized dues of electricity and they have been further directed to review each such case and where proper procedure has not been followed, to withdraw the recovery within two days. The affidavit further mentions that an application has been filed by the petitioner for payment of compensation of Rs. 50,000/- for the harassment caused to him as he had to undergo civil imprisonment without there being any valid recovery against him. An order has been issued by respondent no. 2 for award of compensation to the petitioner in terms of his application and for recovery of the said amount from the guilty officers.

Learned counsel for the petitioner states that the petitioner has not been paid any amount as compensation so far. He further states that he has received instructions from the petitioner that one Shankar Lal, Executive Engineer had visited the premises of the petitioner in the afternoon today and he had taken certain photographs and tried to serve upon him some anti-dated recovery certificate.

Sri M.C. Chaturvedi, learned Additional Advocate General, appearing on behalf of the respondent-Corporation states that no harassment will be meted out to the petitioner and respondent no. 2 will inquire into the said aspect. He also states that the compensation amount will be paid to the petitioner within three days.

Accordingly, we adjourn the instant matter for a week, to be put

up as fresh case on 27.1.2023. Respondent no. 2 will file his affidavit on the above aspects by the next date.

Respondent no. 2 will also find out the reason why electricity connection has not been sanctioned despite the petitioner having applied for the same on 21.11.2020, vide Annexure 1.

**Order Date :- 18.1.2023**

VMA

**(Vikram D. Chauhan, J.)**

**(Manoj Kumar Gupta, J.)**

**Court No. - 21**

**Case :-** WRIT - C No. - 38921 of 2022

**Petitioner :-** Vijay Singh

**Respondent :-** State Of U P And 3 Others

**Counsel for Petitioner :-** Neeraj Srivastava

**Counsel for Respondent :-** C.S.C.,Baleshwar Chaturvedi

**Hon'ble Manoj Kumar Gupta,J.**

**Hon'ble Vikram D. Chauhan,J.**

Sri M. C. Chaturvedi, learned Senior Counsel, appearing for the respondents, on instructions states that compensation amount of Rs. 50,000/- has been paid to the petitioner. He seeks a weeks' time to place on record the outcome of the enquiry that was directed to be held by the previous order. He points out that the petitioner was given an estimate of Rs. 1,00,099/- on 26.10.2020 for the new electric connection of 2KW. The distance from the 11KVA line to the place where the connection is to be supplied is 80 meters. He submits that the respondents will revisit the estimate raised earlier.

Accordingly, the matter is adjourned.

List as fresh on 10.2.2023, by which time, affidavit will be filed on all the aforesaid aspects.

**(Vikram D. Chauhan J.) (Manoj Kumar Gupta, J.)**

**Order Date :-** 27.1.2023

Jaideep/-

**Court No. - 21**

**Case :-** WRIT - C No. - 38921 of 2022

**Petitioner :-** Vijay Singh

**Respondent :-** State Of U P And 3 Others

**Counsel for Petitioner :-** Neeraj Srivastava

**Counsel for Respondent :-** C.S.C.,Baleshwar Chaturvedi

**Hon'ble Manoj Kumar Gupta,J.**

**Hon'ble Syed Qamar Hasan Rizvi,J.**

Affidavit of respondent no. 2 has been filed in compliance of our previous order dated 27.1.2023. It is taken on record.

On request of learned counsel appearing on behalf of respondent nos. 2 and 3, the matter is adjourned.

List as fresh on 15.2.2023.

**(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)**

**Order Date :-** 10.2.2023

Jaideep/-

**Court No. - 21**

**Case :-** WRIT - C No. - 38921 of 2022

**Petitioner :-** Vijay Singh

**Respondent :-** State Of U P And 3 Others

**Counsel for Petitioner :-** Neeraj Srivastava

**Counsel for Respondent :-** C.S.C.,Baleshwar Chaturvedi

**Hon'ble Manoj Kumar Gupta,J.**

**Hon'ble Syed Qamar Hasan Rizvi,J.**

The instant petition has been filed praying for quashing of the notice dated 25.03.2021 issued by respondent No. 3 and the recovery citation dated 06.07.2022. The impugned recovery proceedings were undertaken against the petitioner as there was allegation of theft of electricity.

During course of hearing of the writ petition it transpired, that the impugned recovery certificate was issued merely on basis of provisional assessment order dated 25.03.2021 without passing any order of final assessment. The respondents had withdrawn the impugned recovery proceedings on 02.11.2022. However, the petitioner was detained in civil lockup on basis of recovery certificate and therefore, the respondents had paid to him a compensation of Rs. 50,000/-, which fact is admitted to learned counsel for the petitioner.

In compliance of our previous order, the second respondent had filed his personal affidavit and therein he has disclosed the outcome of the inquiry held against the Executive Engineer who had visited the petitioner's house. Learned counsel for the petitioner states that the petitioner is satisfied with the outcome of the inquiry.

The respondents have brought on record the revised estimate for releasing electric connection in favour of the petitioner.

Counsel for the petitioner states that the petitioner will deposit

the said amount so that electric connection is released in his favour. He fairly states that in view of the subsequent developments noted above, nothing further survives to be decided in the instant matter.

Having regard the above, we dispose of the instant petition with no further direction. It is left open to the petitioner to deposit the amount as disclosed by the respondents for release of electric connection.

**(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)**

**Order Date :- 15.2.2023**

Ruhi